

CERTIFICATE

PRO Indemnification Certificate

ISSUED BY Entuned LLC ("Entuned"), a Wyoming limited liability company with its principal place of business in Colorado

ISSUED TO Any current Entuned subscriber, with respect to that subscriber's authorized use of the Entuned Service (the "Subscriber")

EFFECTIVE DATE May 10, 2026

COVERED LOCATIONS All physical locations active on the Subscriber's Entuned account during the term of the Subscriber's subscription

ISSUED UNDER §7 of the Entuned Subscription Terms at entuned.co/pricing/terms.html (the "Subscription Terms")

1. Background

Entuned provides the Subscriber with a proprietary background music service (the "Service") that delivers original musical works generated, commissioned, and curated by Entuned exclusively for the Service (the "Entuned Music").

The Entuned Music is **not registered with, affiliated with, or part of the repertoire of** the American Society of Composers, Authors and Publishers (ASCAP), Broadcast Music, Inc. (BMI), SESAC, Global Music Rights (GMR), SoundExchange, or any other United States performing rights organization or collective rights management organization (each, a "PRO").

2. Representations and Warranties

Entuned represents and warrants to the Subscriber that, with respect to the Entuned Music delivered through the Service:

1. Entuned owns or controls all copyrights and neighboring rights necessary to authorize the Subscriber's public performance of the Entuned Music at the Covered Locations during the term of the subscription.

2. The Entuned Music does not require any separate license, royalty, or fee payable to any PRO in connection with the Subscriber's public performance of the Entuned Music at the Covered Locations.
3. Entuned has the full right and authority to grant the public performance rights described in the Subscription Terms.

3. Indemnification

Subject to Sections 4 and 5, Entuned shall **defend, indemnify, and hold the Subscriber harmless** from and against any third-party claim, demand, action, proceeding, settlement, judgment, royalty, fee, fine, penalty, damage, cost, or expense (including reasonable attorneys' fees) brought by a PRO or by any rightsholder claiming through a PRO (a "PRO Claim") to the extent such PRO Claim arises out of or relates to the Subscriber's public performance of the Entuned Music through the Service at the Covered Locations during the term.

This indemnity is in addition to, and does not limit, any other indemnification obligations of Entuned under the Subscription Terms. Pursuant to §11 of the Subscription Terms, Entuned's defense and indemnification obligations under §7 of the Subscription Terms (and under this certificate) are not subject to the general limitation of liability set forth in §11.

4. Conditions

Entuned's obligations under Section 3 are conditioned on the Subscriber:

1. Promptly notifying Entuned in writing of any PRO Claim, in any case within thirty (30) days of receipt of any demand letter, invoice, complaint, or notice from a PRO.
2. Granting Entuned sole control of the defense and settlement of the PRO Claim, provided that Entuned shall not enter into any settlement that imposes a non-monetary obligation on the Subscriber without the Subscriber's prior written consent (not to be unreasonably withheld).
3. Reasonably cooperating with Entuned in the defense, including providing relevant records of music played at the Covered Locations during the period in question.
4. Not making any admission of liability or settlement offer to the PRO without Entuned's prior written consent.

5. Exclusions

This indemnification does **not** cover any PRO Claim to the extent it arises from:

1. Music played at a Covered Location from any source **other than the Service** – including but not limited to live performances, third-party streaming services (Spotify, Apple Music, Pandora, YouTube, SiriusXM, etc.), radio or television broadcasts, customer-supplied media, employee-supplied media, or jukeboxes.
2. Modification, remix, or derivative use of the Entuned Music outside the Service interface.
3. Public performance of the Entuned Music outside the Covered Locations.
4. The Subscriber's continued use of the Service after Entuned has notified the Subscriber in writing to discontinue use of a specific track due to a third-party dispute.
5. The Subscriber's breach of the Subscription Terms.

6. Sole and Exclusive Remedy

The defense and indemnification obligations in Section 3 state Entuned's sole and exclusive liability, and the Subscriber's sole and exclusive remedy, with respect to PRO Claims.

7. Term

This certificate applies to PRO Claims relating to the Subscriber's use of the Service during the term of the Subscriber's active subscription. Entuned's obligations under Section 3 survive termination of the subscription with respect to PRO Claims that relate to the period during which the subscription was active, provided that the Subscriber notifies Entuned of the PRO Claim within twelve (12) months after termination.

8. Governing Law and Venue

This certificate is governed by the laws of the State of Colorado, without regard to its conflict-of-laws principles. Any dispute arising out of or relating to this certificate shall be resolved exclusively in the state or federal courts located in Denver County, Colorado, and the parties consent to the personal jurisdiction of those courts. This venue selection matches §13 of the Subscription Terms.

Entuned LLC

By: _____

Name: Daniel Fox

Title: Founder & CEO

Date: May 10, 2026